

Amendment No. 1 to SB0715

Bailey
Signature of Sponsor

AMEND Senate Bill No. 715*

House Bill No. 713

by deleting § 46-3-101 in SECTION 7 and substituting the following:

46-3-101. Chapter definitions.

As used in this chapter:

- (1) "Cemetery" has the same meaning as defined in § 46-1-102;
- (2) "Cemetery company" has the same meaning as defined in § 46-1-102;
- (3) "Community columbarium" means a structure, room, or space in a building or structure used, or intended to be used, for the interment of cremated human remains by members of the general public;
- (4) "Community mausoleum" means a structure, above ground, or partially above and partially below ground, containing crypts and niches used or intended for use by members of the general public;
- (5) "Crypt" has the same meaning as defined in § 46-1-102;
- (6) "Grave space" has the same meaning as defined in § 46-1-102;
- (7) "Interment" has the same meaning as defined in § 46-1-102;
- (8) "Interment right" means the right to inter human remains in a particular grave space, community mausoleum, or community columbarium in a cemetery; and
- (9) "Niche" has the same meaning as defined in § 46-1-102.

AND FURTHER AMEND by adding the following new subsection to § 46-3-102 in SECTION 7:

(e) A cause of action does not arise from reclamation of an abandoned interment right if the interment right was reclaimed in accordance with this section.

AND FURTHER AMEND by deleting SECTION 12 and substituting the following:

SECTION 12. This act takes effect January 1, 2026, the public welfare requiring it.